

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X

DIESODE OMENIH,

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER JUAN
RODRIGUEZ- Shield # 4117, POLICE OFFICER
BRADLEY KUCYK-Shield # 14955 and JANE DOE-
Police Officer as yet unidentified,

Defendants.

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Index #

Date of filing:

Plaintiff designates New York
County as the place of trial

Basis of the venue is Locus of
Occurrence

SUMMONS

Plaintiff resides at
3210 Mickie Avenue,
Bronx, New York 10469

County of Bronx

TO THE ABOVE NAMED DEFENDANT:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in the case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Defendant's address:

THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

THE NEW YORK CITY POLICE
DEPARTMENT
100 Church Street
New York, New York 10007

POLICE OFFICER JUAN RODRIGUEZ-
Shield # 4117
Tax ID # 939357
c/o New York City Police Department- 28th
Precinct
2271-89 8th Avenue
New York, New York 10027

Plaintiff's attorneys:

RUBENSTEIN & RYNECKI, ESQS.
16 Court Street, Suite 1717
Brooklyn, New York 11241
(718)522-1020

Defendant's address:

POLICE OFFICER BRADLEY KUCYK-Shield
14955
Tax ID# 947144
c/o New York City Police Department- 28th
Precinct
2271-89 8th Avenue
New York, New York 10027

Dated: Brooklyn, New York
October 1, 2013

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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DIESODE OMENIH,

Index No.:

Plaintiff,

COMPLAINT

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER JUAN
RODRIGUEZ- Shield # 4117, POLICE OFFICER
BRADLEY KUCYK-Shield # 14955 and JANE DOE-
Police Officer as yet unidentified,

Defendants.

-----X

Plaintiff, by his attorneys, RUBENSTEIN & RYNECKI, ESQS., complaining of the
defendants herein, upon information and belief, respectfully shows to this Court, and alleges as
follows:

**AS AND FOR A FIRST CAUSE OF ACTION FOR ASSAULT
AND BATTERY ON BEHALF OF DIESODE OMENIH**

1. That at all times hereinafter mentioned, the plaintiff was and still is a resident
of the County of Bronx, City and State of New York.
2. That all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK,
was and still is a municipal corporation, duly organized and existing pursuant to the laws of the
State of New York.
3. That the defendant, THE CITY OF NEW YORK, maintains a police force known
as the NEW YORK CITY POLICE DEPARTMENT.
4. That prior hereto on March 6, 2013, and within the time prescribed by law, a sworn
Notice of Claim stating, among other things, the time when and place where the injuries
and damages were sustained, together with plaintiff's demands for adjustment or payment thereof,
and that thereafter the CITY OF NEW YORK refused or neglected for more than (30) days and
up to the commencement of this action to make any adjustment or payment thereof, and that
thereafter, and within the time provided by law, this action was commenced.

5. That on September 19, 2013, pursuant to the General Municipal Law, a Statutory 50-H hearing of the plaintiff was held.

6. That on December 20, 2012, and at all times hereinafter mentioned and upon information and belief, defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, employed POLICE OFFICER JUAN RODRIGUEZ- Shield # 4117, POLICE OFFICER BRADLEY KUCYK-Shield # 14955 and JANE DOE-Police Officer as yet unidentified, as agents, servants and/or employees.

7. That on December 20, 2012, and at all times hereinafter mentioned and upon information and belief, the plaintiff, DIESODE OMENIH, was lawfully at or near the intersection of 122nd Street and 8th Avenue, County, City and State of New York.

8. That on December 20, 2012, and at all times hereinafter mentioned and upon information and belief, the plaintiff, DIESODE OMENIH, was assaulted and battered by defendants, POLICE OFFICER JUAN RODRIGUEZ- Shield # 4117, POLICE OFFICER BRADLEY KUCYK-Shield # 14955 and JANE DOE-Police Officer as yet unidentified, who were acting within the scope of their employment with the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, at the aforesaid premises.

9. That on December 20, 2012, and at all times hereinafter mentioned and upon information and belief, the aforementioned assault and battery was performed knowingly, intentionally and willfully.

10. That on December 20, 2012, and at all times hereinafter mentioned and upon information and belief the defendants, POLICE OFFICER JUAN RODRIGUEZ- Shield # 4117, POLICE OFFICER BRADLEY KUCYK-Shield # 14955 and JANE DOE-Police Officer as yet unidentified, who committed the aforementioned assault and battery upon the plaintiff, DIESODE OMENIH, were acting within the scope of their employment with the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

11. That on December 20, 2012, and at all times hereinafter mentioned and upon information and belief, the assault and battery on the plaintiff was without probable cause and was not the result of an appropriate arrest.

12. By reason of said assault and battery the plaintiff was caused to suffer severe and serious injuries in and about diverse parts of the person, and suffered great pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

13. By the reason of the foregoing, the plaintiff, DIESODE OMENIH, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SECOND CAUSE OF ACTION FOR NEGLIGENT
HIRING AND RETENTION ON BEHALF OF DIESODE OMENIH**

14. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "13" inclusive with the same force and effect as if more fully set forth at length herein.

15. That defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, did not exercise reasonable care and diligence in the selection, engagement, employment and training of their agents, servants, and employees and were negligent in the hiring, training and retention of the defendants, POLICE OFFICER JUAN RODRIGUEZ-Shield # 4117, POLICE OFFICER BRADLEY KUCYK-Shield # 14955 and JANE DOE-Police Officer as yet unidentified, who assaulted, battered and violated the civil rights of the plaintiff, DIESODE OMENIH.

16. That the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, had prior knowledge of the inappropriate, unlawful, and improper conduct of the defendants, POLICE OFFICER JUAN RODRIGUEZ- Shield # 4117, POLICE OFFICER BRADLEY KUCYK-Shield # 14955 and JANE DOE-Police Officer as yet unidentified, and continued to employ them and allowed them to be in contact with the public at large.

17. By the reason of the foregoing, the plaintiff, DIESODE OMENIH, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A THIRD CAUSE OF ACTION FOR FALSE
ARREST ON BEHALF OF DIESODE OMENIH**

18. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "17" inclusive with the same force and effect as if more fully set forth at length herein.

19. That on December 20, 2012, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER JUAN RODRIGUEZ- Shield # 4117, POLICE OFFICER BRADLEY KUCYK-Shield # 14955 and JANE DOE-Police Officer as yet unidentified, were working within the scope of their employment and authority with defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, when they arrested and confined the plaintiff, DIESODE OMENIH.

20. That on December 20, 2012, and at all times hereinafter mentioned and upon information and belief, the arrest and confinement was without probable cause nor based on reasonable grounds and not founded upon an arrest warrant.

21. That as a result of the aforesaid false arrest and confinement, plaintiff, DIESODE OMENIH, sustained serious permanent personal injuries along with humiliation, shame, indignity, damage to reputation and credit and suffered emotional and physical distress and injuries.

22. By the reason of the foregoing, the plaintiff, DIESODE OMENIH, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts

**AS AND FOR A FOURTH CAUSE OF ACTION FOR FALSE
IMPRISONMENT ON BEHALF OF DIESODE OMENIH**

23. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "22" inclusive with the same force and effect as if more fully set forth at

length herein.

24. That on December 20, 2012, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER JUAN RODRIGUEZ- Shield # 4117, POLICE OFFICER BRADLEY KUCYK-Shield # 14955 and JANE DOE-Police Officer as yet unidentified, were acting within the scope of their employment when they, without justification and without probable cause, imprisoned the plaintiff.

25. That defendants, POLICE OFFICER JUAN RODRIGUEZ- Shield # 4117, POLICE OFFICER BRADLEY KUCYK-Shield # 14955 and JANE DOE-Police Officer as yet unidentified, while acting within the scope of their employment, intentionally confined the plaintiff against his will and said confinement was not privileged.

26. By the reason of the foregoing, the plaintiff, DIESODE OMENIH, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR INTENTIONAL
AND NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS
ON BEHALF OF DIESODE OMENIH**

27. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "26" inclusive with the same force and effect as if more fully set forth at length herein.

28. The defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to POLICE OFFICER JUAN RODRIGUEZ- Shield # 4117, POLICE OFFICER BRADLEY KUCYK-Shield # 14955 and JANE DOE-Police Officer as yet unidentified, acted intentionally, recklessly and with utter disregard to the consequences of their actions and caused severe emotional distress to the plaintiff through their actions.

29. Said actions exceeded all reasonable bounds of decency, were outrageous and shocking and resulted in severe emotional distress to the plaintiff, DIESODE OMENIH.

30. That as a result of said intentional and negligent acts, the plaintiff, DIESODE OMENIH, become sick, sore, lame and disabled, received severe and serious injuries in and about diverse parts of his person and suffered great physical pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

31. By reason of the foregoing, the plaintiff, DIESODE OMENIH, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SIXTH CAUSE OF ACTION FOR MALICIOUS
PROSECUTION ON BEHALF OF DIESODE OMENIH**

32. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "31" inclusive with the same force and effect as if more fully set forth at length herein.

33. That on December 20, 2012, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER JUAN RODRIGUEZ- Shield # 4117, POLICE OFFICER BRADLEY KUCYK-Shield # 14955 and JANE DOE-Police Officer as yet unidentified, within the scope of their employment, without justification, without probable cause, created and submitted an erroneous police report in an effort to cover up the aforesaid and initiate a prosecution in bad faith.

34. That on December 20, 2012, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER JUAN RODRIGUEZ- Shield # 4117, POLICE OFFICER BRADLEY KUCYK-Shield # 14955 and JANE DOE-Police Officer as yet unidentified, were acting within the scope of their employment, maliciously prosecuted the plaintiff.

35. That on December 20, 2012, and at all times hereinafter mentioned and upon information and belief, as a result of the aforesaid malicious prosecution, plaintiff sustained serious, permanent, personal injuries along with humiliation, shame, indignity, damage to reputation and credit, legal fees, loss of employment opportunities and suffered emotional and

physical distress and injury.

36. By reason of the foregoing, plaintiff, DIESODE OMENIH, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SEVENTH CAUSE OF ACTION FOR CIVIL
RIGHTS VIOLATION ON BEHALF OF DIESODE OMENIH**

37. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "36" inclusive with the same force and effect as if more fully set forth at length herein.

38. The defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to POLICE OFFICER JUAN RODRIGUEZ-Shield # 4117, POLICE OFFICER BRADLEY KUCYK-Shield # 14955 and JANE DOE-Police Officer as yet unidentified, were acting under the color of law and within the scope of their authority, assaulted, battered, falsely arrested and falsely imprisoned the plaintiff, DIESODE OMENIH, in violation of 42 U.S.C.A. section 1983 as well as other applicable state and federal laws.

39. The defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to POLICE OFFICER JUAN RODRIGUEZ- Shield # 4117, POLICE OFFICER BRADLEY KUCYK-Shield # 14955 and JANE DOE-Police Officer as yet unidentified, acting under color of law and within the scope of their authority, deprived the plaintiff, DIESODE OMENIH, of liberty without due process and without reasonable cause in violation of 42 U.S.C.A. Section 1983 as well as other applicable state and federal laws.

40. The defendants had deprived the plaintiff by their actions of his civil rights as guaranteed by statute.

41. That the assault, battery, false arrest and false imprisonment was in violation of the civil rights of the plaintiff, more particularly, 42 U.S.C.A. Section 1983 as well as other applicable state and federal laws.

42. That the deprivation by the defendants of plaintiff's civil rights was a result of said defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to POLICE OFFICER JUAN RODRIGUEZ- Shield #4117, POLICE OFFICER BRADLEY KUCYK-Shield # 14955 and JANE DOE-Police Officer as yet unidentified, acting under color of law and within their authority as law enforcement officers within the employ of defendants, THE NEW YORK CITY POLICE DEPARTMENT.

43. That the defendants' actions were not privileged or immune.

44. That the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to POLICE OFFICER JUAN RODRIGUEZ- Shield # 4117, POLICE OFFICER BRADLEY KUCYK-Shield # 14955 and JANE DOE-Police Officer as yet unidentified, were not acting with immunity when they deprived plaintiff of his civil rights.

45. By the reason of the foregoing, the plaintiff, DIESODE OMENIH, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR AN EIGHTH CAUSE OF ACTION FOR
PUNITIVE DAMAGES ON BEHALF OF DIESODE OMENIH**

46. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "45" inclusive with the same force and effect as if more fully set forth at length herein.

47. The actions of the defendants herein-above alleged, were malicious, willful and grossly negligent.

48. The defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, authorized, permitted and ratified the unlawful and negligent acts of their agents, servants and/or employees, including but not limited to POLICE OFFICER JUAN RODRIGUEZ- Shield # 4117, POLICE OFFICER BRADLEY KUCYK-Shield # 14955 and JANE DOE-Police Officer as yet unidentified, herein-above alleged.

49. By the reason of the foregoing, the plaintiff, DIESODE OMENIH, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

WHEREFORE, plaintiff, DIESODE OMENIH, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **First** Cause of Action; plaintiff, DIESODE OMENIH, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Second** Cause of Action; plaintiff, DIESODE OMENIH, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Third** Cause of Action; plaintiff, DIESODE OMENIH, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fourth** Cause of Action; plaintiff, DIESODE OMENIH, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fifth** Cause of Action; plaintiff, DIESODE OMENIH, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Sixth** Cause of Action; plaintiff, DIESODE OMENIH, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Seventh** Cause of Action; plaintiff, DIESODE OMENIH, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Eighth** Cause of Action; together with attorneys' fees, and the costs and disbursements of this action.

DATED: Brooklyn, New York
October 1, 2013


Yours, etc.,

ROBERT MIJUCA, ESQ.
RUBENSTEIN & RYNECKI, ESQS.
Attorneys for Plaintiff
DIESODE OMENIH
16 Court Street Suite 1717
Brooklyn, New York 11241
(718) 522-1020
File No.: 12DO12-20

INDIVIDUAL VERIFICATION

STATE OF NEW YORK)

) SS:

COUNTY OF KINGS)

DIESODE OMENIH, being duly sworn, deposes and says, that deponent is the plaintiff in the within action; that deponent has read the foregoing **COMPLAINT** and knows the contents hereof; that the same is true to deponent's own knowledge, except as to the matters therein stated to be alleged upon information and belief, and that as to those matters deponent believes them to be true.



DIESODE OMENIH

Sworn to before me this 1st
day of October, 2013



NOTARY PUBLIC

MAGDA MARIN-COLON
Notary Public, State of New York
No. 01MA6158891
Qualified in Richmond County
Commission Expires 1-16-2015

Year

PLEASE take notice that the within is a (*certified*) true copy of a duly entered in the office of the clerk of the within named court on

Dated,

Yours, etc.

RUBENSTEIN & RYNECKI ESQS.

Attorneys for

Office and Post Office Address

16 COURT ST.

BROOKLYN, N.Y. 11241

To

Attorney(s) for

NOTICE OF SETTLEMENT

PLEASE take notice that an order

of which the within is a true copy will be presented for settlement to the Hon.

one of the judges of the within named Court, at

on

M.

Dated,

Yours, etc.

RUBENSTEIN & RYNECKI ESQS.

Attorneys for

Office and Post Office Address

16 COURT ST.

BROOKLYN, N.Y. 11241

To

Attorney(s) for

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DIESODE OMENIH,

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Defendants,

SUMMONS AND COMPLAINT

Signature (Rule 130-1.1-a)

Print name beneath

RUBENSTEIN & RYNECKI ESQS.

Attorneys for

Plaintiff

Office and Post Office Address, Telephone

16 COURT ST.

BROOKLYN, N.Y. 11241

(718) 522-1020

To

Attorney(s) for

Service of a copy of the within is hereby admitted..

Dated

Attorney(s) for